

22STCV37953 22STCV37953

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-07-31

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Case Number: 22STCV37953 Hearing Date: July 31, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/31/2026

CASE NUMBER: 22STCV37953

CASE

NAME: JACOB SHAW vs HONDA PERFORMANCE

DEVELOPME...

MOVING PARTY: Plaintiff Jacob Shaw

OPPOSING PARTY: Defendant HONDA RACING CORPORATION

USA

PROCEEDING: MOTION TO COMPEL

FURTHER RESPONSES TO HONDA RACING CORPORATION USA'S AMENDED RESPONSE TO DEMAND
FOR PRODUCTION, SET NO. 6

RULING SUMMARY: Plaintiff Jacob Shaw's Motion to Compel

Further Responses to Honda Performance Development, Inc.'s Amended Response to

Demand for Production, Set No. 6 is granted, subject to a privilege log. Defendant shall serve supplemental verified
responses

that comply with sections 2031.220, 2031.230, and 2031.240 of the Code of Civil

Procedure, and produce any responsive documents, and provide privilege logs, as

ordered below, by August 21, 2026.

Background

On

December 5, 2022, plaintiff Jacob Shaw ("Plaintiff") filed a Complaint against defendants Honda Racing Corporation USA, erroneously named Honda Performance Development, Inc. ("Honda"), and Manpower Group US, Inc. ("Manpower"), alleging seven causes of action for (1) Failure to Pay Overtime Wages (Lab. Code §§ 510, 1194, 1198); (2) Failure to Provide Meal Periods (Lab. Code §§ 226.7, 512; IWC Wage Order No. 4-2001 § 11); (3) Failure to Authorize and Permit Wage Periods (Lab. Code § 226.7; IWC Wage Order No. 4-2001 § 12); (4) Failure to Pay All Wages Due Upon Separation (Lab. Code §§ 201, 202, 203); (5) Failure to Furnish Accurate Itemized Wage Statements (Lab. Code § 226; IWC Wage Order No. 4-2001 § 7); (6) Failure to Maintain Required Records (Lab. Code §§ 226, 1174; IWC Wage Order No. 4-2001 § 7); and (7) Unfair and Unlawful Business Practice (Cal. Bus. & Prof. Code §17200 et seq.).

The

operative pleading is the Sixth Amended Complaint ("6AC"). The 6AC added defendant Experis US, Inc. ("Experis") and alleged fifteen causes of action for (1) Disability and/or Perceived Disability against all defendants; (2) Failure to Engage in the Interactive Process against all defendants; (3) Failure to Accommodate Disability against all defendants; (4) Retaliation in Violation of Gov. Code §12940(m)(2) against all defendants; (5) Violation of the California Family Rights Act – Interference against all defendants; (6) Violation of the California Family Rights Act – Retaliation against all defendants; (7) Failure to Prevent Discrimination and Harassment against all defendants; (8) Violation of Lab. Code §§ 233, 234 against all defendants; (9) Wrongful Termination in Violation of Statute and Public Policy against Manpower and Experis; (10) Failure to Pay Overtime Wages (Lab. Code §§ 510, 1194, 1198) against all defendants; (11) Failure to Provide Meal Periods (Lab. Code §§ 226.7, 512 against all defendants; (12) Failure to Authorize and Permit Wage Periods (Lab. Code § 226.7) against all defendants; (13) Failure to Pay All Wages Due Upon Separation (Lab. Code §§ 201, 202, 203) against all defendants; (14) Failure to Furnish Accurate Itemized Wage Statements (Lab. Code § 226) against all defendants; (15) Unfair and Unlawful Business Practice (Cal. Bus. & Prof. Code §17200 et seq.) against all defendants.

Plaintiff

alleged that he commenced his employment as a chassis engineer at Honda in July 2015, classified as a nonexempt hourly employee entitled to overtime. Plaintiff

contends that he was not paid overtime wages, and Experis and/or Manpower contacted Plaintiff to advise him to account for every hour worked. Plaintiff then was diagnosed with health issues that affected his ability to travel and requested accommodations, but instead received a notice of a decision of nonrenewal.

On

December 3, 2024 (1) Honda filed its Answer, and (2) Experis and Manpower filed their Answer.

On

December 17, 2024, Plaintiff filed a demurrer against Honda's Answer and a separate demurrer against Experis and Manpower's Answer. The Court ruled as follows:

1.

Plaintiff's demurrer to Defendant Honda Racing's

Answer is sustained with leave to amend as all affirmative defenses raised in the Answer but overruled as to the 5th affirmative defense. Defendant Honda Racing is granted 10 days leave to amend.

2.

Plaintiff's demurrer to Defendants Manpower and

Experis' Answer is sustained with leave to amend as all affirmative defenses raised in the Answer but overruled as to the 7th affirmative defense.

Defendants Manpower and Experis are granted 10 days leave to amend.

On March 3, 2025, Honda filed its

First Amended Answer, and Experis and Manpower filed their First Amended Answer.

On May 4, 2026, Plaintiff filed

this Motion to Compel Further Responses to Honda's Amended Response to Demand for Production, Set No. 6. On July 20, 2026, Honda filed its Opposition. On July 24, 2026, Plaintiff filed his Reply.

LEGAL

STANDARD

"Unless otherwise limited by order of the court in

accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code of Civ. Proc. § 2017.010.)² For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (City of Los Angeles v. Superior Court³(2017) 9 Cal.App.5th 272, 288.)⁴ ⁵

⁶

A motion to compel further responses to a demand for inspection or production of documents (“RFP”) may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections.⁷ (Code Civ. Proc. § 2031.310(a).)⁸ ⁹

¹⁰

Notice of the motion must be given within 45 days of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing. (Code Civ. Proc. § 2031.310(c).)¹¹ ¹²

¹³

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Cal. Code Civ. Proc. § 2031.310(b)(1).) In ¹⁴Digital Music News LLC v Superior Court¹⁵(2014) 226 Cal.App.4th 216, 224, the Court defined “good cause” as a showing that there¹⁶ is¹⁷ “a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.”¹⁸ ¹⁹

²⁰

If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections.

(Kirkland v. Sup. Ct. (2002) 95 Cal. App.4th 92, 98.)

“The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” (Code of Civ. Proc. § 2017.020(a).) Generally, objections on the ground of burden require the objecting party to produce evidence of (a) the propounding party's subjective intent to create burden, or (b) the amount of time and effort it would take to actually respond. (See West Pico Furniture Co. of Los Angeles v. Superior Court In and For Los Angeles County (1961) 56 Cal.2d 407, 417.) However, where discovery is obviously overbroad on its face, no such evidence is necessary. (See Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 431.)

Trial courts are vested with “wide discretion” to allow or prohibit discovery. (Williams v. Superior Court (2017) 3 Cal.5th 531, 540.)

DISCUSSION

Plaintiff

seeks an order compelling Honda to provide further verified written responses to his Request for Production of Documents (“RFPs”), Set Six, Demand Nos. 98, 99, 100, 101, 102 and 103.

RFP

No. 98: For the period 2020 through 2023, all DOCUMENTS, including electronically stored information, setting forth COMMUNICATIONS between Pierre Descamps and YOUR human resources department RELATING TO renewals of contingent contracts.

While

Honda's amended response^[1]

to RFP No. 98 asserts a privilege log, it appears the privilege log remains at issue (see Separate Statement at Plaintiff's arguments). While Honda cites *People ex rel. Lockyer v. Superior Court* (2004) 122 Cal.App.4th 1060, 1074–75 [“cause the People

timely objected on the grounds of privilege, they preserved these objections, regardless of whether the objections were sufficiently detailed in their response or privilege log and the court, as a matter of law, could not find that they had waived these privileges."], that case does not preclude the Court from granting the motion to compel responses to the requests that preserve the objection based on privacy, and require production of a privilege log.

Honda's

amended response raises objections and states, in relevant part: "Responding Party objects to this Demand to the extent it seeks documents containing confidential, proprietary, or trade secret information belonging to third parties or to non-parties whose privacy rights may be implicated. Communications regarding contingent contract renewals may contain confidential personnel information, compensation data, and performance assessments of individuals who are not parties to this litigation. Personnel and employee privacy rights cannot be waived absent the employee's specific consent. (Harding Lawson Assoc. v. Superior Court (1992) 10 Cal.App.4th 7, 10; Board of Trustees v. Superior Court (1981) 119 Cal.App.3d 516, 526; San Diego Trolley, Inc. v. Superior Court (2001) 87 Cal.App.4th 1083.). . . Subject to, and without waiving, the foregoing objections and all General Objections, Responding Party responds as follows: After a diligent search and reasonable inquiry, Responding Party will comply with this Demand and produce all responsive documents in the demanded category that are in the possession, custody, or control of Responding Party and to which no objection is being made. All responsive, non-privileged documents as they relate to Plaintiff Jacob Shaw have been produced." (Separate Statement at No. 98.) Of the objections, Honda has invoked confidential, proprietary, or trade secret information belonging to third parties or to non-parties whose privacy rights may be implicated. (Ibid.)

Third-party

privacy rights are not waived even if a party fails to serve a timely response to a discovery request. (Boler v. Superior Court (1987) 201 Cal.App.3d 467, 472 fn. 1 ["specific discussions and statutory language suggest waiver only in matters of evidentiary privilege and attorney work product. . ."]; County of Los Angeles v. Superior Court (2021) 65 Cal.App.5th 621, 636 ["privacy rights at stake are those of the petitioners' patients, and we are therefore disinclined to conclude that petitioners' briefing in the superior court precludes our consideration of these rights."].) Because of the lack of an adequate privilege log, no factual information is presented for the Court to evaluate whether Honda's

objections, specifically those mentioned above, are meritorious. (Code Civ. Proc. § 2031.240(c)(1).)

For

these reasons, the Court grants the motion to compel as to RFP No. 98, and requires Honda to provide a privilege log with sufficient information about the document withheld to evaluate the privilege or privacy concerns asserted. (Code Civ. Proc. § 2031.240(c).)

RFP

No. 99: For the period 2020 through 2023, all DOCUMENTS, including electronically stored information, setting forth COMMUNICATIONS between Endo Masatsugo and YOUR human resources department RELATING TO renewals of contingent contracts.

The

same arguments are presented for this RFP as for RFP No. 98.

For the

same reasons, the Court grants the motion to compel as to RFP No. 99, and requires Honda to provide a privilege log with sufficient information about the document withheld to evaluate the privilege or privacy concerns asserted. (Code Civ. Proc. § 2031.240(c).)

RFP

No. 100: For the period 2020 through 2023, all DOCUMENTS, including electronically stored information, sent from YOUR human resources department to the Design Department, including but not limited to Pierre Descamps and Endo Masatsugo, seeking information RELATING TO contract renewals for contingent workers and all responses to same.

Honda's

amended response raises objections and states, in pertinent part: "Responding Party objects to this Demand to the extent it seeks documents containing proprietary, confidential, or trade secret information." (Separate Statement at No. 100.)

For the

same reasons, the Court grants the motion to compel as to RFP No. 100, and requires Honda to provide a privilege log with sufficient information about the document

withheld to evaluate the privilege or privacy concerns asserted. (Code Civ. Proc. § 2031.240(c).)

RFP

No. 101: All social media postings RELATED TO open positions at Honda Racing Corporation (fka Honda Performance Development, Inc.) in 2022 and 2023.

Honda's

amended response states, in pertinent part: "Responding Party objects to this Demand to the extent it seeks information protected by the right of privacy of third parties, including other applicants, associates, and contingent workers. Personnel and/or employee privacy rights cannot be waived absent the employee's specific consent. (Harding Lawson Assocs. v. Superior Court (1992) 10 Cal.App.4th 7, 10; Board of Trustees v. Superior Court (1981) 119 Cal.App.3d 516, 526; San Diego Trolley, Inc. v. Superior Court (2001) 87 Cal.App.4th 1083.). . Subject to and without waiving these objections and the General Objections, Responding Party provides: Responding party agrees to produce all discoverable documents or things in the demanded category that are in the possession, custody, or control of Responding Party. Responding Party believes all such communications have been produced. However, in good faith, Responding Party is reviewing its records and will produce any additional documents responsive to this request." (Separate Statement at No. 101.)

As this

RFP seeks social media posting, which are public, Honda has no grounds to object on the basis of right to privacy.

The Court grants the motion to compel as to RFP No. 101, and orders Honda to serve verified supplemental responses omitting this objection and complying with the mandatory language in section 2031.220, 2031.230 and 2031.240 of the Code of Civil Procedure, and produce all responsive documents.

RFP

No. 102: For the period January 2020 through December 2023, all DOCUMENTS, including electronically stored information, evidencing COMMUNICATIONS with YOUR human resources department regarding the Chassis Design Engineer position.

Honda's

amended response includes the same privacy objections discussed above as well as a statement that all responsive, non-privileged documents have been produced. (Separate Statement at No. 102.)

For the

same reasons, the Court grants the motion to compel as to RFP No. 102, and requires Honda to provide a privilege log with sufficient information about the document withheld to evaluate the privilege or privacy concerns asserted. (Code Civ. Proc. § 2031.240(c).)

RFP

No. 103: All policies, procedures, or written guidelines in effect during 2020 through 2023, governing job postings, recruitment, hiring, or selection of applicants, including any policies applicable to internal postings, external postings, or the use of staffing agencies or contingent labor.

Honda's

amended response states in pertinent part: "Responding Party objects to this Demand on the ground that it implicates the privacy rights of third parties, including other employees and applicants. Personnel and/or employee privacy rights cannot be waived absent the employee's specific consent. . . Responding Party has produced all responsive, non-privileged documents within its possession, custody, or control." (Separate Statement at No. 103.)

As this

RFP seeks policies, procedures, or written guidelines, which would not include personally identifying information or other private information of third parties, Honda has no grounds to object on the basis of right to privacy. The Court grants the motion to compel as to RFP No. 103, and orders Honda to serve verified supplemental responses omitting this objection and complying with the mandatory language in section 2031.220, 2031.230 and 2031.240 of the Code of Civil Procedure, and produce all responsive documents.

Plaintiff

requests sanctions in the amount of \$8,000.00 [8+ hours @ \$1,000.00/hr]. (Decl. Lauren A. Dean ¶¶ 18-19.)

Honda

argues that, even if further responses are warranted, sanctions are unjustified as (1) Honda has demonstrated willingness to reasonably narrow and supplement its discovery responses once disputes were clarified through meet-and-confer, and remains willing to produce communications between Descamps and Endo and

Honda's human resources department concerning the renewal status of contingent workers assigned through Experis/Manpower and within Plaintiff's reporting line and time period, subject to the protective order, without the necessity of sanctions. (See Opp. 22:9-12.)

Code of

Civil Procedure section 2031.310(h) provides: "Except as provided in subdivision (j), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

The

Court denies the request for sanctions, as the privacy issues were properly raised by Honda in connection with this motion.

Conclusion

Plaintiff

Jacob Shaw's Motion to Compel Further Responses to Honda Performance Development, Inc.'s Amended Response to Demand for Production, Set No. 6 is granted, with orders as stated above. The verified supplemental responses, document production, and privilege logs shall be provided by August 21, 2026.

Date: 07/31/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court

[1]

Honda refers to the operative pleading as the 5AC, but the operative pleading is the 6AC.